

23VECV02649 23VECV02649

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-04

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Tentative Ruling

Rostarmian v. Maly, Case no. 23VECV02649

Hearing date August 4, 2026

Cross-Defendant

Kavoosisharifabad's Motions for Judgment on the Pleadings

Plaintiff

minor Ava M., by and through GAL Rostarmian, sues defendants Maly (her father) and Kavoosisharifabad (her mother) for breach of contract. Defendants entered into a written agreement to transfer real property to Ava M., which they allegedly failed to do.

Ava.

M. was consolidated with an unlawful detainer complaint filed by Maly against Ava M. and Kavoosisharifabad arising from the same allegations. Maly sought to remove Kavoosisharifabad from the property in Ava M., alleging it was to be deeded to Ava M. upon reaching adulthood.

Maly

cross-complains against Kavoosisharifabad and Moghaddem for breach of contract and declaratory relief, alleging Kavoosisharifabad engineered Ava M. to circumvent a family court judgment.

Kavoosisharifabad

cross-complained against Maly for breach of contract, fraud, constructive trust

and unjust enrichment, alleging Maly breached the terms of a marital settlement agreement by failing to transfer the property to Ava M. Kavosisharifabad subsequently settled with plaintiff and assigned all her claims and interests to plaintiff.

Moghaddem

cross-complains against Ava M. and Kavosisharifabad for quiet title, declaratory relief, conspiracy, abuse of process and related claims.

Kavosisharifabad

moves for judgment on the pleadings as to Maly's cross-complaint, as well as to Moghaddem's FACC, on the basis that Kavosisharifabad has assigned all her claims and interests in this litigation to plaintiff and as such is not a proper defendant. Maly and Moghaddem filed a joint opposition to separate MJOPs. The court considers the motions jointly.

Kavosisharifabad

requests judicial notice of: (1) 1/12/26 Petition for Approval of Minor's Compromise, and (2) 3/6/26 order approving minor's compromise. Maly and Moghaddem request judicial notice of: (1) Maly's cross-complaint, pp. 1-11; (2) 3/6/26 order; (3) mutual settlement and release between plaintiff and Kavosisharifabad; and (4) Kavosisharifabad's 3/24/26 Anti-SLAPP motion to strike. GRANTED pursuant to Evid. Code §452(d).

A

motion for judgment on the pleadings should be granted when, under "the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law." *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216. Code Civ. Proc. §438 permits a party to make a motion for judgment on the pleadings per Code Civ. Proc. §438(c)(1)(B) if moving party is a defendant, that either (i) the court has no jurisdiction; or (ii) the complaint does not state facts sufficient to constitute a cause of action.

Kavosisharifabad

argues neither Maly's cross-complaint nor Moghaddem's FACC states sufficient facts to constitute causes of action against Kavosisharifabad.

Kavosisharifabad argues the settlement between herself and plaintiff assigned "all of her breach of contract claims," "all of her claims for breach of fiduciary duty," "her claims of fraud and fraudulent conveyance" and "her

claims of conversion" to plaintiff. See Maly RJN 3.

Kavoosisharifabad agreed to "forego any and all rights and claims to the [subject property]." Id. Kavoosisharifabad argues she assigned all rights and claims, and plaintiff now stands in her shoes.

The

joint opposition argues the January 2026 agreement between plaintiff and Kavoosisharifabad assigned Kavoosisharifabad's affirmative claims to plaintiff and released claims between those two only. The joint opposition argues an assignment of a claimant's rights does not immunize the assignor from liabilities owed to someone else, and two parties cannot release a nonparty's claims without that nonparty's consent.

The

first three causes of action in Maly's cross-complaint allegedly arise from Kavoosisharifabad's own obligations and conduct under the marital judgment and incorporated settlement agreement, her alleged prevention or frustration of Maly's performance and her alleged misuse of process. See Maly RJN 1. The fourth cause of action in Maly's cross-complaint was brought against Moghaddem only for declaratory relief and dismissed without prejudice.

The

settlement agreement identifies "Plaintiff Ava M." and "Defendant Armita Kavoosi Sharifabad" as the "Parties." See Maly RJN 3. The recitals describe a resolution of disputes "by and between Plaintiff and the Defendant" (Id.) and state Kavoosisharifabad's claims are assigned to plaintiff, and plaintiff's claims against Kavoosisharifabad are released. Id. The document does not state that Maly releases Kavoosisharifabad, that plaintiff assumes Kavoosisharifabad's liabilities to Maly or that Maly's cross-complaint is dismissed or adjudicated. The 3/6/26 order states the approval of the minor's compromise and related settlement was as to Kavoosisharifabad only. See Maly RJN 2.

An

assignment transfers the assignor's rights; it does not, without the creditor's consent, transfer the assignor's burdens or erase obligations already owed to another person. Civ. Code §1457 provides: "The burden of an obligation may be transferred with the consent of the party entitled to its benefit, but not otherwise." The mere assignment of rights does not cast the assignor's contractual obligations on the assignee absent an assumption of those obligations. Recorded Picture Co. (Productions) Ltd. v. Nelson

Entertainment, Inc. (1997) 53 Cal.App.4th 350, 362.

Maly

has not consented to discharge of his claims against Kavosisharifabad. The settlement between plaintiff and Kavosisharifabad did not state plaintiff assumed Kavosisharifabad's liabilities against Maly. Kavosisharifabad's argument that she "lacks standing to be sued" because she assigned her own claims has no support in law. Standing concerns who may prosecute a claim; an assignor's loss of standing to prosecute an assigned claim does not create immunity from claims owned by other creditors. Kavosisharifabad's reliance on *Snover v. Gupta* (2025) 116 Cal.App.5th 111 is misplaced; *Snover*, supra, was a MICRA damages-apportionment and settlement-setoff case did not address assignment or standing. The MJOP is DENIED as to Maly's cross-complaint.

The

joint opposition makes no reference to Moghaddem's claims for declaratory relief or Moghaddem's FACC. As the opposition is stated to be by both Maly and Moghaddem, the court treats this as an admission of the arguments in Kavosisharifabad's MJOP as to Moghaddem's FACC. Further, assignment of Kavosisharifabad's claims in the property to plaintiff extinguish any claim for declaratory relief as to Kavosisharifabd's alleged rights to the property. MJOP GRANTED as to Moghaddem's FACC only.